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Nepal Pragma Pratishthan Act, 2064

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Amending Act

1. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 21 of the year 2064 made by the Legislature-Parliament

An Act made to provide for amendments and consolidation in the laws relating to Nepal Pragma Pratishthan

Preamble: Whereas, Nepal being a multi-ethnic, multi-lingual and multi-cultural country, realizing the need to preserve, promote and develop all languages, literature and culture of Nepal, it is desirable to make timely amendments and consolidation in the prevailing legal provisions relating to the Pragma Pratishthan in order to make necessary provisions regarding the preparation and causing preparation of socially useful works through research and original creation in language, literature, culture, philosophy and social sciences, and the honor and appreciation of scholars and talents in this field,

Now, therefore, the Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Nepal Pragma Pratishthan Act, 2064".
 - (2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Pragma Pratishthan" means the Nepal Pragma Pratishthan established pursuant to Section 3.
 - (b) "Assembly" means the Academic Assembly pursuant to Section 7.
 - (c) "Council" means the Academic Council pursuant to Section 11.
 - (d) "Chancellor" means the Chancellor of the Pragma Pratishthan.
 - (e) "Vice-Chancellor" means the Vice-Chancellor of the Pragma Pratishthan.
 - (f) "Secretary" means the Secretary of the Pragma Pratishthan.
 - (g) "Office-Bearer" means the Chancellor, Vice-Chancellor, Secretary and nominated members of the Council.
 - (h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
- Chapter-2

Establishment of Pragma Pratishthan and its Functions, Duties and Powers

3. Establishment of Pragma Pratishthan: (1) There is established a Pragma Pratishthan named "Nepal Pragma Pratishthan" for the preservation, promotion and development of all languages, literature, culture and philosophy of Nepal, among other works.
- (2) The central office of the Pragma Pratishthan shall be in Kathmandu Valley, and it may open branches in

various places of Nepal as required. 4. Pragya Pratishthan to be an Autonomous Institution: (1) The Pragya Pratishthan shall be an autonomous institution with perpetual succession.

(2) The Pragya Pratishthan shall have its own separate seal for all its acts and proceedings.

(3) The Pragya Pratishthan may acquire, use, sell or otherwise dispose of movable and immovable property in the same manner as a person.

(4) The Pragya Pratishthan may sue and be sued in its own name in the same manner as a person.

(5) The Pragya Pratishthan may enter into contracts and exercise the rights and perform the obligations arising from such contracts in the same manner as a person. 5.

Functions, Duties and Powers of the Pragya Pratishthan: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Pragya Pratishthan shall be as follows:- (a) to formulate policies and programs of the Pragya Pratishthan, (b) to conduct study and research on various subjects relating to all languages, literature, culture, philosophy and social sciences of Nepal and to prepare or cause to prepare useful books and works, (c) to create or cause to create and publish original and research works on various subjects relating to all languages, literature, culture, philosophy and social sciences of Nepal, (d) to translate and publish or cause to translate and publish high quality works from foreign languages into all languages of Nepal and from languages of Nepal into foreign languages, as required, (e) to organize or cause to organize national and international seminars, conferences, exhibitions, etc. relating to languages, literature, culture, philosophy and social sciences, (f) to participate or cause to participate in international conferences, lectures, seminars, discussions, exhibitions, etc. on various subjects of languages, literature, culture, philosophy and social sciences, (g) to establish relations with international organizations related to various fields of languages, literature, culture, philosophy and social sciences, (h) to make arrangements for appreciation, honor and award to domestic and foreign persons who have made significant contributions in various subjects of languages, literature, culture, philosophy and social sciences, (i) to enhance cooperation, goodwill and coordination for creating an environment conducive to the development of talents of scholars, writers and social scientists in related subjects for the development of languages, literature, culture, philosophy and social sciences, (j) to promote and preserve the literature, scripts, culture and proverbs of various castes and communities of Nepal, (k) to study, research, promote and preserve Nepali folk literature, (l) to prepare and publish encyclopedias and dictionaries in all languages of Nepal, various foreign languages and languages spoken in Nepal, and to create and bring into circulation various words and terminologies to enrich and glorify all languages of Nepal, (m) to support the development of local writers, litterateurs, social scientists, cultural experts and other related institutions contributing to the subjects of language, literature, culture, philosophy and social sciences, (n) to make arrangements for scholarships for study and research on all languages, literature, culture, philosophy and social sciences of Nepal, (o) to introduce all languages and literature of Nepal to the world literature, (p) to give priority to the preservation and promotion of endangered languages and cultures of various castes and ethnic groups of Nepal, (q) to perform or cause to perform other necessary activities to fulfill the objectives of this Act. Chapter-3 Organization of the Pragya Pratishthan 6.

Organization of the Pragya Pratishthan: The organization of the Pragya Pratishthan shall be as follows, and their collective form shall constitute the body of the Pragya Pratishthan:- (a) Assembly, (b) Council, and (c) Service Commission. 7. Assembly: (1) There shall be an Academic Assembly as the supreme body of the Pragya Pratishthan. (2) The composition of the Assembly shall be as follows:- (a) Chancellor ? Chairperson (b) Vice-Chancellor ? Vice-Chairperson (c) Secretary, Ministry of Culture, Tourism and Civil Aviation ? Member (d) Thirty-five persons nominated by the Prime Minister from among distinguished persons related to all languages, literature, culture, philosophy and social sciences of Nepal, ensuring inclusive representation

including appropriate representation of women ? Members (e) Secretary ? Member-Secretary (3) The term of office of the members nominated pursuant to sub-section (2) shall be four years. (4) If, for any reason, the office of a nominated member of the Assembly falls vacant, another person shall be nominated from the same genre or field from which such member was nominated, for the remaining term. (5) The facilities of the members of the Assembly shall be as prescribed. 8. Recommendation Committee: (1) There shall be a Recommendation Committee as follows to recommend names to the Prime Minister for the appointment or nomination of office-bearers and members to be nominated to the Assembly:- (a) Minister for Culture, Tourism and Civil Aviation ? Chairperson (b) Two persons designated by the Prime Minister from among renowned persons in the field of language, literature, culture and philosophy ? Members (2) While recommending names for nomination as members of the Assembly, the Committee pursuant to sub-section (1) shall recommend names from among persons who have studied and researched in subjects related to language, literature, culture, philosophy and social sciences or who are renowned in that field, ensuring as far as possible representation from all genres related to language, literature, culture, philosophy and social sciences and covering all castes, genders, and language speakers. (3) While recommending names for the appointment of office-bearers, the Committee pursuant to sub-section (1) shall recommend from among the nominated members of the Assembly. (4) The procedure to be followed in relation to recommendations by the Committee pursuant to sub-section (1) shall be as determined by the Committee itself. 9.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) to determine the policy of the Pragya Pratishthan, (b) to approve the annual plan and program of the Pragya Pratishthan, (c) to pass the annual budget of the Pragya Pratishthan, (d) to endorse scholarships, honors and awards, (e) to give necessary directions and guidance to the Council, (f) to monitor and evaluate the work of the Council, (g) to approve rules of the Pragya Pratishthan, (h) to perform such other functions as prescribed. 10. Meeting of the Assembly: (1) The meeting of the Assembly shall be held at least twice a year. (2) The meeting of the Assembly shall be held on the date, time and place fixed by the Chairperson of the Assembly. (3) The Member-Secretary of the Assembly shall give notice to all members inclusive of the agenda of subjects to be discussed in the meeting at least fifteen days prior to the meeting of the Assembly. (4) If more than fifty percent of the members currently holding office are present in the Assembly, it shall be deemed to constitute a quorum for the meeting of the Assembly. (5) The meeting of the Assembly shall be presided over by the Chairperson of the Assembly and, in his/her absence, by the Vice-Chairperson. (6) In a meeting of the Assembly, the opinion of the majority shall prevail, and in case of a tie, the person presiding over the meeting shall give a casting vote. (7) The decision of the meeting of the Assembly shall be certified and kept by the Member-Secretary of the Assembly. (8) The Assembly may invite Honorary Academicians and Lifetime Members of the Pragya Pratishthan to participate in the meeting of the Assembly as observers. (9) Other procedures relating to the meeting of the Assembly shall be as determined by the Assembly itself. 11. Formation of Council: (1) There shall be an Academic Council to function as the executive body of the Pragya Pratishthan. (2) The composition of the Council shall be as follows:- (a) Chancellor ? Chairperson (b) Vice-Chancellor ? Vice-Chairperson (c) Eight persons nominated by the Prime Minister from among the nominated members of the Assembly, including at least three women and ensuring as far as possible representation of different castes, ethnic groups and language speakers ? Members (d) Secretary ? Member-Secretary (3) If, for any reason, the office of a member pursuant to clause (c) of sub-section (2) falls vacant, another person shall be nominated from the same genre or field from which such member was nominated, for the remaining term. 12.

Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) to implement the decisions made by the Assembly, (b) to follow the directions given by the

Assembly, (c) to submit the audit report to the Assembly, (d) to discuss the annual program, budget, progress report and other reports submitted by the Secretary and, if necessary, amend them and submit them to the Assembly for approval, (e) to manage, operate, preserve and take care of the movable and immovable property of the Pragya Pratishthan, (f) to manage and operate the fund of the Pragya Pratishthan, (g) to accept financial and other assistance received for the Pragya Pratishthan, (h) to submit scholarships, honors, appreciations and awards to the Assembly for endorsement, (i) to form committees, sub-committees or task forces as required in relation to the work and proceedings of the Council and to specify the functions, duties and powers of such committees, sub-committees or task forces, (j) to perform such other functions as prescribed. 13. Meeting of the Council: (1) The meeting of the Council shall be held at least once in two months. (2) The meeting of the Council shall be held on the date, time and place fixed by the Chairperson of the Council. (3) The Member-Secretary of the Council shall give notice to all members inclusive of the agenda of subjects to be discussed in the meeting at least twenty-four hours prior to the meeting of the Council. (4) If more than fifty percent of the members currently holding office are present in the Council, it shall be deemed to constitute a quorum for the meeting of the Council. (5) The meeting of the Council shall be presided over by the Chairperson of the Council and, in his/her absence, by the Vice-Chairperson. (6) In a meeting of the Council, the opinion of the majority shall prevail, and in case of a tie, the person presiding over the meeting shall give a casting vote. (7) The decision of the meeting of the Council shall be certified and kept by the Member-Secretary of the Council. (8) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. Chapter-4 Chief Patron, Patron and Office-Bearers and Employees of the Pragya Pratishthan 14. Chief Patron: The Prime Minister shall be the Chief Patron of the Pragya Pratishthan. 15. Patron: The Minister for Culture, Tourism and Civil Aviation shall be the Patron of the Pragya Pratishthan. 16. Chancellor: (1) There shall be one Chancellor in the Pragya Pratishthan. (2) The Chancellor shall be the chief office-bearer of the Pragya Pratishthan. 17.

Functions, Duties and Powers of the Chancellor: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Chancellor shall be as follows:- (a) to implement or cause to implement the directions given by the Assembly and the decisions made by the Council, (b) to cause to prepare the annual program, budget, report and other reports of the Pragya Pratishthan, (c) to exercise general control over the work, proceedings and personnel administration of the Pragya Pratishthan, (d) to enter into contracts on behalf of the Pragya Pratishthan with the approval of the Council, (e) to make necessary contacts with domestic and foreign organizations on matters relating to the work of the Pragya Pratishthan, (f) to perform such other functions as prescribed. 18. Vice-Chancellor: There shall be one Vice-Chancellor in the Pragya Pratishthan. 19. Functions, Duties and Powers of the Vice-Chancellor: The functions, duties and powers of the Vice-Chancellor shall be as follows:- (a) to assist the Chancellor in the implementation of directions given by the Assembly and decisions made by the Council, (b) to perform all the functions performed by the Chancellor in his/her absence, (c) to perform other functions under the direction of the Chancellor. 20. Secretary: (1) There shall be one Secretary in the Pragya Pratishthan. (2) The functions, duties and powers of the Secretary shall be as prescribed. 21. Provisions Relating to Office-Bearers: (1) The Prime Minister shall, subject to this Act, appoint the office-bearers. (2) The term of office of an office-bearer shall be four years. (3) An office-bearer shall work full-time in the Pragya Pratishthan. (4) The remuneration, terms of service and facilities of office-bearers shall be as prescribed. 22. Circumstances of Vacancy of Office: The office of an office-bearer or a member of the Assembly shall be deemed vacant in the following circumstances:- (a) if his/her term of office expires, (b) if he/she resigns, (c) if his/her mental balance is not sound, (d) if he/she is convicted by a court on a criminal charge involving moral turpitude, (e) if he/she is removed from office under Section 23, or (f) if he/she dies. 23.

Power to Remove from Office: (1) If at least one-fourth of the members currently holding office in the Assembly submit a written application to the Prime Minister stating that an office-bearer or a member of the Assembly has not worked in accordance with the objectives of this Act, or has not behaved commensurate with his/her office, or has not worked honestly, or lacks work efficiency, the Prime Minister shall form an investigation committee from among the members of the Assembly. (2) The investigation committee pursuant to sub-section (1) shall investigate the matter and submit its report to the Prime Minister, and the Prime Minister shall make arrangements to place such report before the Assembly for discussion. (3) When the report submitted pursuant to sub-section (2) is discussed in the Assembly, if the majority of the members of the Assembly decide that the office-bearer or member of the Assembly has not worked in accordance with the objectives of this Act, or has not behaved commensurate with his/her office, or has not worked honestly, or lacks work efficiency, the Prime Minister shall remove such office-bearer or member of the Assembly from his/her office. (4) Before removing an office-bearer or a member of the Assembly under sub-section (3), he/she shall be given an opportunity to defend himself/herself. 24. Employees: (1) There shall be such number of employees in the Pragya Pratishthan as may be required. (2) The appointment, remuneration, facilities and terms of service of the employees pursuant to sub-section (1) shall be as prescribed. 25. Service Commission: (1) There shall be a Pragya Pratishthan Service Commission as follows to recommend for the permanent appointment and promotion of employees of the Pragya Pratishthan:- Post Description (a) A member of the Public Service Commission designated by the Public Service Commission - Chairperson (b) One member of the Assembly designated by the Assembly - Member (c) Secretary - Member-Secretary (2) Other functions, duties and powers of the Service Commission shall be as prescribed. (3) The procedure relating to meetings of the Service Commission shall be as determined by the Commission itself. (4) The Chairperson and member of the Service Commission shall receive meeting allowance as prescribed for participation in meetings. Chapter-5 Fund and Audit 26.

Fund of the Pragya Pratishthan: (1) The Pragya Pratishthan shall have its own separate fund. (2) The fund pursuant to sub-section (1) shall consist of the following amounts:- (a) amounts received from the Government of Nepal, (b) amounts received from foreign governments, associations, institutions or persons, (c) amounts received from domestic associations, institutions or persons, (d) amounts received by the Pragya Pratishthan for any services rendered, and (e) amounts received from any other sources. (3) Before receiving amounts pursuant to clause (b) of sub-section (2), the Pragya Pratishthan shall obtain the approval of the Government of Nepal. (4) The amount of the fund shall be deposited by opening an account in a bank designated by the Pragya Pratishthan. (5) The operation of the fund and accounts of the Pragya Pratishthan shall be as prescribed. (6) All expenditures of the Pragya Pratishthan shall be borne from the fund pursuant to sub-section (1). 27. Accounts and Audit: (1) The accounts of income and expenditure of the Pragya Pratishthan shall be kept in accordance with the practice adopted by the Government of Nepal. (2) The audit of the accounts of the Pragya Pratishthan shall be conducted by the Auditor General. Chapter-6 Miscellaneous 28. Honorary Academician and Lifetime Membership: (1) The Assembly may, on the recommendation of the Council, confer Honorary Academician membership of the Pragya Pratishthan to a domestic or foreign person who has made a distinguished contribution to the development of language, literature, culture, philosophy and social sciences and has enhanced the prestige of Nepal nationally and internationally. (2) The Assembly may confer Lifetime Membership of the Pragya Pratishthan to a Nepali citizen who has made a distinguished contribution in the fields of language, literature, culture, philosophy and social sciences. (3) The basis for conferring Honorary Academician membership and Lifetime Membership pursuant to sub-sections (1) and (2) shall be as prescribed. (4) The Pragya Pratishthan may provide facilities as prescribed to a Lifetime Member. Provided that, a Lifetime Member already receiving any remuneration or

facility from the Government of Nepal shall not receive such facility. (5) The Assembly may remove an Honorary Academician member or Lifetime Member from membership in prescribed circumstances. 29. Power to Confer Appreciation, Honor and Award: The Assembly may confer appreciation, honor and award to a person who has made a notable contribution in the fields of language, literature, culture, philosophy and social sciences. 30. Duty to Submit Report: The Pragya Pratishthan shall submit an annual report of its work and proceedings to the Government of Nepal every year. 31.

Oath: Before assuming office, the Chancellor shall take an oath before the Prime Minister, and the Vice-Chancellor, Secretary and members of the Assembly shall take an oath before the Chancellor, in the format as per the Schedule. 32. Delegation of Powers: (1) The Assembly may, as required, delegate to the Council some of the powers vested in it under this Act or the rules made under this Act. (2) The Council may, as required, delegate to the Chancellor, Vice-Chancellor or Secretary some of the powers vested in it under this Act or the rules made under this Act. (3) The Chancellor may, as required, delegate to the Vice-Chancellor or Secretary some of the powers vested in him/her under this Act or the rules made under this Act. (4) The Vice-Chancellor may, as required, delegate to the Secretary some of the powers vested in him/her under this Act or the rules made under this Act. 33. Emblem: The emblem of the Pragya Pratishthan shall be as prescribed. 34. Liaison Ministry: While making contact with the Government of Nepal, the Pragya Pratishthan shall do so through the Ministry of Culture, Tourism and Civil Aviation. 35. Power to Make Rules: The Pragya Pratishthan may make necessary rules to implement the objectives of this Act. Provided that, while making rules on matters involving financial burden on the Government of Nepal, prior approval of the Government of Nepal shall be obtained. 36. Repeal and Savings: (1) The Nepal Rajakiya Pragya Pratishthan Act, 2050 is hereby repealed. (2) All acts and proceedings done under the Nepal Rajakiya Pragya Pratishthan Act, 2050 shall be deemed to have been done under this Act. (3) Notwithstanding anything contained in sub-section (2), except for Lifetime Members appointed or nominated under the Nepal Rajakiya Pragya Pratishthan Act, 2050, the Vice-Chancellor and Secretary, and members of the Assembly and members of the Council shall automatically vacate their offices after the commencement of this Act. (4) Employees working in the Nepal Rajakiya Pragya Pratishthan under the Nepal Rajakiya Pragya Pratishthan Act, 2050 shall be designated by the Government of Nepal to be under the Pragya Pratishthan, Nepal Lalitkala Pragya Pratishthan and Nepal Sangeet Tatha Natya Pragya Pratishthan, based on their qualification, experience, work specialization and their interest. (5) The Government of Nepal shall specify that the movable and immovable property, transactions, loans, rights and liabilities, among others, in the name of the Nepal Rajakiya Pragya Pratishthan shall vest in the Pragya Pratishthan, Nepal Lalitkala Pragya Pratishthan and Nepal Sangeet Tatha Natya Pragya Pratishthan.